

Court No. - 21

Case :- WRIT - C No. - 2574 of 2017

Petitioner :- Chandra Pal And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinit Kumar Srivastava, Nikhil Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble V.K. Shukla, J.

Hon'ble Mrs. Sangeeta Chandra, J.

The petitioner is before us complaining that his electricity bill has been wrongly sent as the real approved load is of 5 H.P for private tube well motor that he owns which has been incorrectly shown as having 10 H.P. load.

On the matter being taken up today counsel for the respondent No. 2 and 3 Surangama Sharma holding brief of Shri. Baleshwar Chaturvedi states that under the U.P. Electricity Supply Code 2005 there is a provision under Paragraph 6.5 wherein, under Clause (b) if a consumer disputes the accuracy of any bill he may either make payment under protest of the amount equal to the sum claimed from him or the electricity charges calculated on the basis of average of electricity bills of the proceedings six months, whichever is less, and file a complaint with the competent authority before due date for payment. The relevant extract of Paragraph 6.5(b) is being quoted hereinbelow:

"If a consumer disputes the accuracy of any bill, he may either make the payment under protest of-

(i) an amount of equal to the sum claimed from him, or

(ii) the electricity charges, calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed:

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued

within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately, and the consumer shall be liable to pay the late payment surcharge."

Since, the petitioner is disputing the correctness of the bill he has statutory remedy under Paragraph 6.5(b) he should approach the appropriate forum.

Once such is the factual situation and there is a statutory remedy provided the petitioner may approach opposite party No.3 with his complaint within two weeks from today and he shall dispose of the same in accordance with law within four weeks thereafter.

The writ petition is disposed of.

Order Date :- 19.1.2017

S Rawat